

## 26NNCV03730 26NNCV03730

County: los-angeles

Division: Civil Law and Motion

Department: D

Hearing date: 2026-09-18

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Case Number: 26NNCV03730 Hearing Date: September 18, 2026 Dept: D

### TENTATIVE RULING

Calendar: 18

Date: September 18, 2026

Case No: 26NNCV03730 Trial Date: Not yet set

Case Name: Chen, et al. v. HUSPRF Reit LLC, et al.

### DEMURRER WITH MOTION TO STRIKE

[CCP § 430.10 subd. (e)]

Moving Party: Defendants, Annalyn Chacon, Michelle McManus, and Andrew Haley

Responding Party: Plaintiffs, Plaintiffs Katherine Chen, Keith Chen, Rodrigo Tonetto, Solange Girardelle, Eva Schaumkell, Vijay Venkatesh, Naseeb Malhi, and Dalila Mielle [Unopposed]

### RELIEF REQUESTED:

Sustain demurrer to Complaint.

CAUSES OF ACTION: from First Amended Complaint

1) Violation of Pasadena Fair and Equitable Housing Charter Amendment, Article XVIII

2) Violation of Tenant Protection Act of 2019 (AB 14820

3) Violation of Pasadena Fair and Equitable Housing Charter Amendment, Article XVIII § 1806(h) – Harassment

4) Unfair Business Practices (Bus. & Prof. Code § 17200 et seq.)

5) Declaratory Relief

6) Injunctive Relief

#### SUMMARY OF FACTS:

Katherine Chen, Keith Chen, Rodrigo Tonetto, Solange Girardelle, Eva Schaumkell, Vijay Venkatesh, Naseeb Malhi, and Dalila Mielle (collectively, "Plaintiffs") are long-term residential tenants at 290 North Hudson Avenue, in Pasadena, California. Defendant Hines U.S. Property Recovery Fund ("HUSPRF") acquired the property in March 2025. In April and May 2025, Defendants issued renewal offers and/or imposed rent and recurring charge increases on existing tenants at the property. Plaintiffs allege that the property was not in compliance with Pasadena's rental registration requirements for fiscal years 2024 and 2025, and that such noncompliance precluded rent increases at the property. Plaintiffs allege that Defendants used utility and ancillary fees, including charges imposed through a Ratio Utility Billing System ("RUBS"), as shadow rent increases. The Complaint further alleges that Defendants filed unlawful detainer actions against the tenant-Plaintiffs in which Defendants seek to enforce alleged rent balances, three-day notices, and possession claims based in whole or in part on amounts that include, arise from, or are traceable to the unlawful rent increases, RUBS-based charges, utility charges, legal fees, late fees, and other recurring charges challenged in this action.

#### DEMURRER:

"A party may amend its pleading once without leave of the court at any time before the answer, demurrer, or motion to strike is filed, or after a demurrer or motion to strike is filed but before the demurrer or motion to strike is heard if the amended pleading is filed and served no later than the date for filing an opposition to the demurrer or motion to strike. A party may amend the pleading after the date for filing an opposition to the demurrer or motion to strike, upon stipulation by the parties. The time for responding to an amended pleading shall be computed from the date of service of the amended pleading." (CCP, § 472, subd. (a).)

Plaintiffs were entitled to file a first amended complaint up until September 4, 2026, nine court days prior to this hearing. Plaintiffs filed the FAC on September 3, 2026. Thus, Plaintiffs filing the FAC renders the subject Demurrer moot. (JKC3H8 v. Colton (2013) 221 Cal.App.4th 468, 477 ["an amendatory pleading supersedes the original one, which ceases to perform any function as a pleading and renders moot a motion directed at the original," internal citations omitted].)

The Demurrer and Motion to Strike are MOOT.

#### RULING:

Defendants Annalyn Chacon, Michelle McManus, and Andrew Haley's Demurrer and Motion to Strike are MOOT.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

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